

51	Arashfar v. Trieu 30-2026-01544986	Hearing on motion to transfer case off-calendar per 5/13/2026 Order.
52	Flores-Garcia v. Nissan North America, Inc. 30-2024-01435508	Defendant Nissan North America, Inc.'s motion to compel Plaintiff Jorge I. Flores-Garcia to provide further deposition testimony and to produce additional documents, is granted in part and denied in part. The motion is granted as to further deposition testimony and denied as to production of documents. Code of Civil Procedure section 2025.480, subdivision (a) states: "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." A deponent who has objected to a question and refused to answer bears the burden of justifying such refusal on the motion to compel. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:814; see <i>San Diego Professional Assn. v. Superior Court of San Diego County</i> (1962) 58 Cal.2d 194, 199 ["The burden of establishing that a particular matter is privileged is on the party asserting that privilege."].) Contrary to Plaintiff's assertion, the motion does not ask for an open-ended further deposition. Instead, Defendant only seeks "deposition testimony related to questions in which testimony was withheld." (Not., at p. 1:24-26.) At the deposition, Plaintiff's attorney instructed Plaintiff not to answer the following questions: 1) What is this document? (Do Decl., Exh. B, at p. 17:13.) 2) When was the first time that you saw this document? (Do Decl., Exh. B, at p. 18:9-10.) 3) Did you write this letter? (Do Decl., Exh. B, at p. 18:17.) 4) Have you seen this document before? (Do Decl., Exh. B, at p. 33:18.) 5) Do you see that? (Do Decl., Exh. B, at p. 34:8-9.) (See also, Sep. Stmt.) Plaintiff's counsel objected to these questions on the basis of attorney-client privilege. Plaintiff's counsel also objected to the first question on the ground that the document speaks for itself. (Do Decl., Exh. B, at pp. 17-18, 33-34.) Plaintiff did not justify his objections to these questions. Specifically, Plaintiff has not shown that any of these questions were seeking responses that would be covered by